

Jeffrey J. Hunt (5855)
David C. Reymann (8495)
Carissa A. Uresk (18114)
PARR BROWN GEE & LOVELESS
101 South 200 East, Suite 700
Salt Lake City, Utah 84111
Telephone: (801) 532-7840
jhunt@parrbrown.com
dreymann@parrbrown.com
curesk@parrbrown.com

Attorneys for the Deseret News, Deseret Digital Media, Inc. d/b/a KSL.com, KSL-TV, KSL NewsRadio, KUTV 2News, the Radio Television Digital News Association, and the Utah Headliners Chapter of the Society of Professional Journalists

C. Michael Judd (14692)
PARSONS BEHLE & LATIMER
201 South Main Street, Suite 1800
Salt Lake City, Utah 84111
Telephone: (801) 532-1234
mjudd@parsonsbehle.com

Attorneys for The Salt Lake Tribune, Jessica Schreifels, St. George News, the Associated Press, Fox13 News, Millard County Chronicle Progress, KOAL (Castle County Radio), KUER-FM, Lehi Free Press, The Park Record, CBS Broadcasting, Inc., The New York Times Company, Fox News Media, and Law & Crime Network

**IN THE FOURTH JUDICIAL DISTRICT COURT
UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,

Plaintiff,

v.

TYLER JAMES ROBINSON,

Defendant.

**NEWS MEDIA’S RESPONSE TO
DEFENDANT’S OPPOSITION TO
ELECTRONIC MEDIA REQUEST
FOR THE PRELIMINARY HEARING**

Case No. 251403576

Hon. Tony F. Graf, Jr.

The News Media respectfully submits this Response to Defendant Tyler James Robinson’s Opposition to Electronic Media Request for the Preliminary Hearing (Opposition). (Dkt. 623; *see also* Dkt. 612 (EMC Order).) Under the Court’s May 8, 2026 order, the News Media has until July 1, 2026, to submit its Response, but is filing early based on the Court’s indication that it will rule on the Opposition on June 26, 2026. (*See* Dkt. 535 at 8.)

Defendant's Opposition merely repeats generalized policy arguments against EMC that this Court has already rejected. Those arguments are not sufficient to overcome the presumption favoring EMC and should be rejected yet again.¹

First, Defendant argues "there is a reasonable likelihood that [EMC] will prejudice the right of the parties to a fair proceeding." (Opp. 2.) He contends prejudice is reasonably likely because hearsay testimony will be presented at the preliminary hearing and because EMC "distracts and places added pressure on hearing participants." (Opp. 2–3.) But these arguments "merely reflect generalized views or preferences" and could be made with respect to any preliminary hearing. Utah R. Jud. Admin. 4-401.01(2)(D). For that reason, they are insufficient to overcome the presumption favoring EMC. *Id.* Moreover, this Court has already ruled that the hearing will be open to the public, so any hearsay testimony will be available to the public. EMC ensures that the public has access to the most accurate reporting on that testimony.

Second, Defendant objects to EMC because "the request does not allow for witnesses to address privacy or security concerns." (Opp. 4.) Defendant does not identify the referenced witnesses or their alleged concerns. So this is another general policy argument that could be made with respect to any hearing in any case. As with Defendant's other policy arguments, this argument does not support any "particularized findings" that would support prohibiting EMC. Utah R. Jud. Admin. 4-401.01(2)(C).

Finally, Defendant asks this Court to prohibit EMC of any exhibits the parties choose to publish in open court during the preliminary hearing. Defendant claims this relief is mandated by

¹ Defendant argues that his due process and fair trial rights are violated by the briefing guidelines implemented by the Court. (Opp. 1–2.) Those arguments are without merit, for the reasons explained by this Court in its prior rulings and in the News Media's Response to Defendant's Petition for Permission for Interlocutory Appeal. (Dkt. 626 at 17–19.)

Rule 4-401.01, which disallows EMC “of an exhibit or a document that is not part of the official public record.” Utah R. Jud. Admin. 4-401.01(6)(C). But that exception applies only to exhibits that are *not* presented in open court and are thus *not* part of the “official public record.” If the parties choose to publish an exhibit during an open court proceeding, that exhibit *is* part of the official public record because “[w]hat transpires in the court room is public property.” *Craig v. Harney*, 331 U.S. 367, 374 (1947). Even if a document was previously non-public, when it is “introduced as an exhibit in a proceeding in open court,” its character “chang[es]” and it becomes a “public record[.]” *State ex rel. Cincinnati Enquirer v. Dinkelacker*, 761 N.E.2d 656, 662 (Ohio Ct. App. 2001) (pretrial hearing in criminal case). Such offered exhibits are just as much a part of these public proceedings as the testimony of witnesses.

Indeed, this Court already expressly recognized this distinction in its June 1, 2026 ruling denying Defendant’s attempt to close the preliminary hearing, stating that “[a]t oral arguments, the parties agreed that neither the public nor the media should be permitted to inspect or copy exhibits presented at the preliminary hearing *except as published in court as part of the hearing*.” (Dkt. 563 at 1 (emphasis added).) That ruling is irreconcilable with Defendant’s request that this Court now order that the public *cannot* view exhibits as they are “published in court as part of the hearing.”

Records offered in open court fall squarely within the bedrock presumption in Rule 4-401.01 that EMC “shall be permitted in public proceedings.” Utah R. Jud. Admin. 4-401.01(2)(A). Other than records that are *not* part of those public proceedings, the rule makes no distinction between EMC of witness testimony or exhibits published in open court. That conclusion is consistent with the fact that there is a “strong presumption in favor of allowing public access to judicial records entered into evidence at a public session of court.” *United States v. Suarez*, No. 16-CR-403 (JFB)(20), 2020 WL 7705973, at *1 (E.D.N.Y. Dec. 28, 2020) (citation omitted). As

the Second Circuit explained in addressing a similar issue, the distinction Defendant urges here is inconsistent with that presumption of access:

Once the evidence has become known to the members of the public, including representatives of the press, through their attendance at a public session of court, it would take the most extraordinary circumstances to justify restrictions on the opportunity of those not physically in attendance at the courtroom to see and hear the evidence, when it is in a form that readily permits sight and sound reproduction.

In re Application of Nat'l Broad. Co., Inc., 635 F.2d 945, 952 (2d Cir. 1980). Indeed, as this Court has recognized before in similar contexts, allowing EMC of published exhibits will *increase* the accuracy of reporting, and thus public confidence in the process, rather than forcing the public to rely on characterizations of documents they cannot see.²

Defendant's passing attempt to rely on *Archuleta* fares no better. In a parenthetical, Defendant implies that *Archuleta* held that access to exhibits does not serve the interests of justice, and thus there is no basis for EMC of them. But that is not what *Archuleta* held. In *Archuleta*, the issue was whether the media and public have the right to be ““admitted *beyond the bar*” to *physically handle* and copy exhibits.” *State v. Archuleta*, 857 P.2d 234, 241 (Utah 1993) (emphasis added). The exhibits at issue included “fluid, tissue, and hair samples and bone fragments taken from the victim, various instruments used to torture and kill the victim, defendants’ and the victim’s bloody clothing, and fingerprints taken at the crime scene.” *Id.* at 242. Allowing *physical* access “beyond the bar” to such exhibits would “create obvious problems concerning the court’s and the State’s mandate to adequately preserve the integrity of the evidence.” *Id.*

² In a single sentence, Defendant contends that preliminary hearing exhibits are often “withdrawn at the conclusion of the hearing” and are therefore not part of the “official record.” (Opp. 4.) That assertion is incorrect. Withdrawn exhibits may not be part of the court’s retained exhibits after the hearing is concluded, but the “official record” here is the proceeding itself—what happens in open court and what can be shown by EMC. That proceeding cannot be “withdrawn.”

That is not the issue here. The News Media do not seek to physically handle any evidence or be “admitted beyond the bar.” They simply seek the presumptive right Rule 4-401.01 provides to allow EMC of what transpires during the public preliminary hearing, whether that involves a witness testifying, a document being published on a screen, or both.

In the end, this Court should see Defendant’s request to prohibit EMC of all exhibits for what it is—an attempt to upend this Court’s ruling that EMC will be permitted during the preliminary hearing. As a practical matter, requiring cameras to be turned off any time a document is put up on the screen is tantamount to barring EMC altogether. This Court has already ruled that EMC should be allowed, with appropriate limitations, during the preliminary hearing. Defendant’s objection does not present any compelling reason for this Court to change that decision.

For these reasons, the Court should deny the Opposition.

RESPECTFULLY SUBMITTED this 24th day of June 2026.

PARR BROWN GEE & LOVELESS

/s/ David C. Reymann

Jeffrey J. Hunt

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Carissa A. Uresk

Attorneys for Attorneys for the Deseret News, Deseret Digital Media, Inc. d/b/a KSL.com, KSL-TV, KSL NewsRadio, KUTV 2News, the Radio Television Digital News Association, and the Utah Headliners Chapter of the Society of Professional Journalists

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